



Delaware County Commissioners Meeting February 16th 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=NTIzqQDmfoQ
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Target Category	delaware_county

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Delaware County Commissioners Meeting Summary

Meeting Date: February 16, 2021

Location: Delaware County, Indiana

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the regular meeting at 9:01 AM on Tuesday, February 16, 2021. Notice was given that the meeting was live-streamed on the Delaware County Indiana Government Facebook page, with public questions/comments directed to commissioners@co.delaware.in.us.
- **Attendance:**
 - **Present:** Mr. Henry, Ms. Reagan (President), Mr. King, Mr. Brook (Attorney / Staff role noted during roll)
 - **Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening roll call and acknowledgment of extreme winter weather conditions ("it's been a nighty night").
 - **Approval of Minutes:**
 - **00:06:41** Approval of the minutes from the February 1, 2021 meeting.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
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4. Substantive Business & Board Action

- **00:00:58 Table Business: Development Agreement with WJH LLC / Country Village Property**
 - **Sponsor / Presenter:** Angie Moyer / Marta (Attorney) / John Brook / Mr. Connor (Developer Representative)
 - **Deliberation Summary:** Discussion regarding unfinished development improvements from past years at Country Village. The developer's legal team originally submitted a draft, which county attorney John Brook and Marta found not to be in the county's best interest. Marta drafted an alternative agreement consistent with past county development agreements, requiring WJH LLC to complete street improvements and drainage correction/repairs. Mr. Connor agreed to accept Marta's draft on behalf of the developer.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to remove from table approved by roll call. Motion to approve Marta's draft development agreement passed unanimously by roll call vote.
- **00:07:03 Contracts / Agreements: Emergency Declaration 2020-04 (Pandemic)**
 - **Sponsor / Presenter:** John Brook / Board
 - **Deliberation Summary:** Continuation of the governor's pandemic emergency declaration through March 1. Delaware County noted being in the "yellow category" for about 10 days with ongoing cases and some deaths.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed Unanimously by roll call vote.
- **00:08:09 Contracts / Agreements: Weather Emergency Declaration 2021-05**
 - **Sponsor / Presenter:** Board / County Leadership
 - **Deliberation Summary:** Formalizing and clearing the record for the weather emergency declaration implemented the previous night due to heavy snowfall (12-13 inches).
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Approved by Voice Vote / Roll Call (Passed Unanimously).
- **00:08:49 Contracts / Agreements: City-County Inter-local Agreement**
 - **Sponsor / Presenter:** Angie Moyer / Troy / Tommy / John Brook
 - **Deliberation Summary:** Inter-local road maintenance and plowing agreement with the City of Muncie, reflecting minor road changes for operational efficiency. Items 6, 7, and 8 are completely new additions. The Muncie Board of Public Works approved it the prior week.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
- **00:10:06 2021 Highway Department Annual Material Bids**
 - **Sponsor / Presenter:** Angie Moyer / John Brook / Denise
 - **Deliberation Summary:** Opening of annual material bids for asphalt mixes, crushed stone, sand, and fuel.
 - *AgBest LLC:* Diesel and gasoline (Option 1 and 2 pricing).
 - *Asphalt mixes:* Multiple supplier bids opened.
 - *Milestone Contractors (Richmond):* Asphalt mixes.
 - *Irving Materials (IMI):* Stone, rip-rap, sand, and gravel.
 - *Note on Late Bid:* A bid packet from Petroleum Traders arrived after the deadline and was returned unopened.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to take bids under advisement (Angie Moyer to compile a spreadsheet for the next meeting) passed by roll call vote.
- **00:14:40 Road Paving Projects (Community Crossings Funds)**
 - **Sponsor / Presenter:** Angie Moyer
 - **Deliberation Summary:** Bids opened for two Community Crossings-funded road projects: (1) Eaton Wheeling Pike (Wheeling Ave to Bridge 21) including a 2-foot stone shoulder addendum; and (2) Jonesboro Road/Eaton (Grant County line to Wheeling Ave).
 - *Brooks Construction (Fort Wayne):* Jonesboro Rd: \$390,369.00; Eaton Wheeling Pike: \$407,571.00.
 - *E&B Paving LLC:* Jonesboro Rd: \$466,980.20; Eaton Wheeling Pike: \$496,460.05.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to take both bids under advisement passed by roll call vote.
- **00:18:12 Bridge Number 501 Bridge Rehab (Crown Road and Buck Creek)**
 - **Sponsor / Presenter:** Angie Moyer
 - **Deliberation Summary:** Opening of bids for a Community Crossings bridge rehabilitation project:

- *Duncan Robertson Inc. (Franklin, IN): \$1,270,276.95*
 - *Hoosier Pride Excavating (Springport, IN): \$1,181,912.73*
 - *Baily Construction Inc. (Frogtown, IN): \$1,335,859.45*
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Motion to take bids under advisement passed by roll call vote.
- **00:20:43 Agreement for Employment of Delaware County Attorney**
 - **Sponsor / Presenter:** Board / John Brook
 - **Deliberation Summary:** Annual renewal of county attorney employment agreement; prices and rates remain unchanged.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote.
- **00:22:11 Howard E. Nighthard Company Inc. GIS Service Agreement**
 - **Sponsor / Presenter:** John Brook / Shannon / Cheri / Steve
 - **Deliberation Summary:** Review and approval of annual GIS service agreement.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote.
- **00:22:22 Easement Agreement along Tillotson (Jail Property)**
 - **Sponsor / Presenter:** Shannon / Joe
 - **Deliberation Summary:** Easement agreement across three recently acquired parcels along Tillotson (extending north up to Cornbread Road) to accommodate a planned public trail project.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote.
- **00:31:47 Payment of Claims**
 - **Sponsor / Presenter:** Board / Auditor Staff
 - **Deliberation Summary:** Review of county claims totaling \$1,679,729.27.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote.

5. Open Public Comment / Citizen Forum

Note: General public comments were handled via email/Facebook stream submissions read into the record by staff/commissioners rather than live floor testimony.

- **00:32:26 Troy:** Submitted a compliment on the Facebook page praising the Highway Department for doing a great job during the winter storm.
- **00:32:32 Chief Deputy Jeff Stanley (Sheriff's Office):** Submitted a comment thanking the Highway Department for assisting stranded motorists overnight.

- **00:32:47 Shelly Lacy & Denise Smith:** Submitted general compliments via social media to county staff/crews for storm response.
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6. Administrative Updates & Adjournment

- **Staff & Department Head Announcements:**
 - **Fire Chiefs Association: 00:23:16** Shannon reported that the Fire Chiefs Association requested a letter of support for a FEMA grant application to secure new radios and equipment. Commissioners authorized placing the letter on county letterhead.
 - **Emergency Operations Center (EOC), EMS, 911, & Highway Updates:** Extensive praise given to county highway crews, dispatch, EMS, and EOC staff for working 12-to-14-hour shifts overnight through blizzard conditions (12<U+2013>13 inches of snow) and handling emergency calls. Highway department noted having ~300 tons of salt in the barn with a replenishment scheduled.
 - **Maintenance:** Shout-out to Charlie Walker (Maintenance Superintendent) for covering three buildings.
 - **Planning Commission (00:29:55):** Marna announced a simple public survey regarding solar energy on the county website, as well as a joint comprehensive land use and strategic investment plan initiative partnering with the City, Muncie Action Plan, and Next Muncie (with a dedicated website launching soon).
 - **Justice & Rehabilitation Center (00:33:13):** Cheri reminded the public that the new Delaware County Justice Rehabilitation Center opens the following day. MITS route 17 will provide direct public transit service from downtown to the facility on a 180-day trial basis.
 - **Adjournment:**
 - **Action & Vote Disposition:** Motion to recess approved unanimously by roll call vote.
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